MBONGISENI NDLOVU

Vs

THE STATE

HIGH COURT OF ZIMBABWE
MUTEVEDZI AND NDLOVU JJ
BULAWAY, 24 February & 24 June 2026

Criminal appeal

B. C. Dube, for appellant
K. Nyoni on behalf of D. E. Kanengoni, for the respondent

NDLOVU J: This is an appeal against both conviction and sentence imposed by the court of the a regional magistrate sitting at Plumtree. The appellant was convicted of rape as defined in section 65(1) of the Criminal Law (Codification and Reform) Act *[Chapter 9:23]* ("the CODE") and sentenced to 15 years' imprisonment. Before this Court, the appellant abandoned his appeal against sentence and persisted only with the appeal against conviction. At the end of the hearing of the appeal, we dismissed it in its entirety. The appellant has since requested the reasons for that decision, which we now provide.

BACKGROUND

[1] The allegations by the State were that on 8 September 2025, at Ezekiel Ndlovu's homestead, Senganyondo village, Madlambuzi area, the appellant unlawfully had sexual intercourse with the complainant without her consent. The background facts are that the appellant, a twenty-two-year-old man, is a cousin of the complainant. The complainant, in turn, was a twelve-year-old pupil attending a local primary school.

[2] On 8 September 2025, the complainant went to the appellant's residence to charge her cellphone and to have her hair cut. Upon arrival, she found the appellant in his room and knocked. The appellant opened the door and invited her inside. Once she had entered, he closed and locked the door. He then forced the complainant onto the bed, removed her clothing, and had unprotected sexual intercourse with her once without her consent. Thereafter, the appellant

released the complainant, who returned home and reported the incident to her mother. The matter was subsequently reported to the police, leading to the appellant's arrest.

PROCEEDINGS BEFORE THE COURT A QUO

[3] At the trial, the appellant denied the allegations. He told the court that on the day in question, he saw the complainant three times, but each time they were not alone in the house. He further stated that he was too busy to cut the complainant's hair and advised her to return the following day. He only became aware of the allegations and the report later that night, after which he was arrested.

[4] The prosecution opened its case by producing medical evidence in the form of an affidavit and a clinical card completed at Plumtree Hospital. The documents were admitted with the consent of the appellant, and became exhibits 1 and 2, respectively. The medical officer recorded hymenal notches, uterine tenderness, and vaginal discharge, findings which he said were consistent with penetration. Thereafter, the prosecution called the viva voce testimonies of two witnesses: the complainant and Memory Nkomo, her mother.

THE STATE CASE

The complainant

[5] She testified that on 8 September 2025, she went to the appellant's homestead to charge her phone and have a haircut. According to her, once inside the appellant's room, he locked the door, forced her onto the bed, removed her clothes, and raped her. She stated that she was shocked and frightened by the incident. Later that same day, she confided in her friend, Sipho, and subsequently reported the matter to her mother at around midnight. During her testimony, she denied any suggestion of bad blood between her family and the appellant's, maintaining that her account was truthful.

[6] Under cross-examination, she was challenged on certain inconsistencies, particularly regarding the timing of events and her ability to walk home after the incident, but she remained firm in her account.

Memory Nkomo (mother of the complainant)

[7] She corroborated her daughter's account, testifying that her daughter disclosed the incident to her around midnight of the day she was raped. She said the girl was visibly in pain. She described in detail how her daughter had narrated the events of the day, including being locked inside the appellant's room and how he had raped her. She firmly denied that there were any family disputes with the appellant's family that could have motivated a false allegation. During cross-examination, she conceded that her daughter was able to walk home after the incident, but she rejected the defence's suggestion that the allegations were fabricated. Her evidence was consistent with the complainant's prompt report and reinforced the State's case that the disclosure was voluntary and immediate.

THE DEFENCE CASE

The appellant

[8] The appellant testified in his defence, maintaining his plea of not guilty and adopting his defence outline. He stated that on the day in question, he had been collecting firewood in the company of neighbours and later spent the night at his girlfriend's residence. He denied any involvement in the alleged rape and contended that the charge was fabricated, attributing it to longstanding animosity between the two families. Although he conceded that he briefly returned home, he insisted that he was never alone with the complainant. He further asserted that his alibi was corroborated by his relatives and maintained that the complainant's version was false. Under cross-examination, the appellant was confronted with material inconsistencies between his evidence and that of his witness, particularly concerning the timing of his return home. He struggled to reconcile these discrepancies, thereby weakening the coherence and reliability of his defence.

Siyabonga Ndlovu

[9] Siyabonga Ndlovu ("Siyabonga") testified that he assisted the appellant in fetching firewood from approximately 11:00 a.m. to 5:00 p.m. He conceded, however, that during that period the appellant at some stage returned home alone to charge his phone. He further stated that he observed the complainant at the appellant's homestead in the company of others. His evidence,

however, was at variance with that of the appellant, particularly regarding the timing of the appellant's return home. Whereas the appellant maintained that he returned at about 1:00 p.m., Siyabonga indicated that this occurred around 11:00 a.m. This inconsistency materially weakened the appellant's alibi defence. Under cross-examination, Siyabonga further conceded that he could not account for the appellant's movements at all material times, thereby leaving open the real possibility that the appellant was alone with the complainant.

Simphiwe Ndlovu

[10] Simphiwe Ndlovu ("Simphiwe") testified that on the morning in question, he went to the appellant's homestead, where he assisted him in harnessing donkeys before they proceeded to collect and ferry firewood from the bush. He stated that, at various intervals during the day, the appellant left the cart and returned home alone—on one occasion to collect *mahewu*, on another to charge his cellphone, and again to fetch an axe. He further testified that he first observed the complainant alone at the appellant's homestead, although he denied that she entered the appellant's house. He indicated that he later saw the complainant inside the appellant's house, and she was in the company of Samu, Cindy, John, Dah, and Mandazi.

FINDINGS OF THE COURT A QUO

[11] The court *a quo* made several findings and observations before concluding that the appellant had sexual intercourse with the complainant without her consent. It first identified a number of issues which it regarded as common cause between the parties. These included that the appellant and the complainant were well acquainted prior to the incident; that the complainant visited the appellant's homestead on three occasions on the day in question; that the appellant had gone to the bush to collect firewood; that he at some stage returned home alone from that activity; and that the complainant had engaged in sexual intercourse with a male person, as confirmed by the medical evidence.

[12] Thereafter, the court *a quo* isolated the issue for determination as being whether or not the appellant had sexual intercourse with the complainant on the day in question and, if so, whether or not such intercourse was consensual. In her judgment, the trial magistrate's construction demonstrated an appreciation of the evidence required in sexual offences. Having cautioned

itself in the manner it did, the court *a quo* found that the complainant had made the rape report at the first reasonable opportunity following the incident, initially to her friend, Sipho, and subsequently to her mother. On that basis, the trial court concluded that there had been no inordinate delay in reporting the matter. The trial magistrate further rejected the suggestion that the complainant had been coached to fabricate the allegations against the appellant. She also dismissed the appellant's *alibi* defence, finding that, on several occasions, the appellant had left his companions in the bush whilst gathering firewood and returned alone to his homestead. In the magistrate's view, the appellant's defence amounted to no more than a bare denial. Ultimately, the court was satisfied that the State had proved the appellant's guilt beyond a reasonable doubt, as required at law.

PROCEEDINGS BEFORE THIS COURT

[13] Aggrieved by the decision of the court *a quo*, the appellant noted an appeal against both conviction and sentence. He advanced three grounds of appeal against conviction and one against sentence, which were couched in the following terms:

> **"GROUNDS OF APPEAL**
> **AD CONVICTION**
>
> 1. "The *court a quo* erred and misdirected itself at law in convicting the Appellant of Rape based on the evidence of the complainant, which evidence was mutually destructive and materially inconsistent with that of the 2nd State witness in terms of the time and exact manner that the rape was said to have occurred.
> 2. Further, the *court a quo* erred at law in accepting the evidence of the complainant as truthful when the complainant gave 3 conflicting and different versions of how and when the rape occurred on the day in question, which renders the conviction unsafe under the circumstances.
> 3. A *fortiori*, the *court a quo* erred and misdirected itself at law, in disregarding the defence and evidence of the Appellant, labelling it as a bare denial, when his defence, that of an alibi and that there was bad blood between the families and hence he was being framed, was never challenged nor controverted by the State.
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> **AD SENTENCE**
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> 4. The *court a quo* erred in exercising its discretion capriciously by disregarding and not considering the mitigating factor that the Appellant is

a first-time youthful offender, thereby imposing a sentence which is outrageous, manifestly excessive, and unjust, and induces a sense of shock under the circumstances.

RELIEF SOUGHT

Wherefore the Appellant prays for an order that;

1. The Appeal succeeds with costs
2. The Conviction and Sentence are hereby quashed and set aside
3. The judgment of the *court a quo* is set aside and substituted with the following;

a. *"The accused be and is hereby Found Not Guilty and Acquitted.*
Alternatively, if the conviction is upheld
b. "The Accused person is sentenced to 15 years imprisonment, of which 5 years is suspended on condition that the accused person does not, within a period of 5 years, commit an offence of a sexual nature." [Sic]

[14] As earlier indicated, at the hearing, the appellant abandoned his ground of appeal against sentence and persisted only with the appeal against conviction. He sought an order setting aside the conviction and substituting it with a verdict of not guilty and an acquittal. The prosecution opposed the appeal and supported the conviction.

ISSUES FOR DETERMINATION

[15] The grounds of appeal essentially raise issues regarding the correctness of the finding that sexual intercourse occurred and that if it did, it was non-consensual; the credibility of the complainant's testimony and whether the trial court misdirected itself in rejecting the appellant's defences of *alibi* and family animosity. In essence, they raised the following issues for determination:

a. Whether the prosecution's case proved the crime of rape,
b. Whether the complainant's evidence was credible, and
c. Whether the trial court misdirected itself in rejecting the appellant's defences of *alibi* and family animosity.

The law in relation to the crime of rape

[16] The definition of rape is common cause. It appears under s 65(1) of the CODE which defines the offence of Rape as follows:

"**65 Rape**

(1) If a male person knowingly has sexual intercourse or anal sexual intercourse with a female person, and at the time of the intercourse-

(a) the female person has not consented to it; and

(b) He knows that she has not consented to it or realises that there is a real risk or possibility that she may not have consented to it."

[17] The provision does not expressly define the term sexual intercourse. However, the courts have consistently interpreted it to mean "the complete or partial penetration of a male's penis into the vagina of a female". In *S v Khuphe & Anor* HB-80-83, the court held that even the slightest penetration of the female genitalia by the male organ is sufficient to constitute sexual intercourse, and that rupture of the hymen is not a prerequisite. Similarly, in *S v Ruzive* HH-613-19, it was held that the absence of full penetration does not negate the offence. The court observed that evidence indicating that the accused's penis did not fully enter the complainant's vagina, coupled with proof of pain experienced in the genital area, was sufficient to establish the requisite degree of penetration in law.

The alibi defence

[18] The proper approach to dealing with the *alibi* defence is well settled. An *alibi* is when an accused avers that he/she could not have possibly committed the crime because, at the material time he/she was somewhere else, and not at the crime scene. It must be considered in the context of the totality of the evidence. It does not require corroboration to be valid, but it must reasonably exclude the appellant's presence at the scene. The case authorities are clear that where the accused raises the defence of *alibi,* it is not for him/her to prove it but for the State to disprove it. See *S* v *Mutandi* 1996(1) ZLR 367 (H); *S* v *Munsakwa* 1995 (1) ZLR 1 (SC); *S* v *Masawi & Anor* 1996 (2) ZLR 472 (SC). Similarly, for the accused to properly and successfully rely on it, the *alibi* must have been raised at the earliest possible opportunity to enable both the police and prosecution to properly investigate it. An *alibi* raised at trial rarely meets this requirement and requires an accused to then do more than just mention it.

APPLICATION OF THE LAW TO THE FSCTS.

[19] In sexual cases, Zimbabwean courts have consistently emphasised the need for caution when assessing a complainant's testimony, given the recognised danger of false incrimination. The assessment of credibility in sexual offences must be undertaken with caution but without imposing a higher standard of proof than that required by law. The

evidence of a complainant does not require corroboration as a matter of law, although it may, depending on the circumstances, enhance its probative value. Again, a delay in reporting or the absence of an immediate complaint does not automatically render the complainant's evidence unreliable; instead, it must be assessed contextually.

[20] In the present matter, the complainant's version was coherent and was also supported by a prompt complaint to Sipho and her mother, as well as medical evidence confirming sexual intercourse. As rightly pointed out by the trial court, the complainant had sexual intercourse with a male person. What was only left for determination was who that man was. The complainant pointed a finger at the appellant. The court aquo believed her for the various reasons that it gave. In the case of *Marumani* v *The State* HH 21-14, the High Court stressed that *'the court must be satisfied that the complainant's testimony is not only credible but also reliable. Where contradictions exist, they must be reconciled or explained, failing which the conviction cannot safely stand.'* That authority underlines that contradictions which go to the core of the prosecution's case, such as the time, place, and circumstances of the alleged rape, must be addressed by the trial court with clear reasoning.

[21] In the present case, the appellant sought to persuade this Court that the complainant gave three conflicting versions regarding the manner and timing of the rape and that her account was inconsistent with that of the second State witness concerning the sequence of events. Ordinarily, material contradictions of that nature may affect a witness's credibility. However, upon a proper reading of the record, the appellant clearly mischaracterised the complainant's evidence. The complainant did not dispute that she went to the appellant's homestead on three occasions on the day in question. Her evidence remained consistent that the third visit occurred after the alleged rape had already taken place. Her testimony, properly construed, distinguished the separate visits and did not amount to contradictory versions of when the offence occurred. Accordingly, the alleged inconsistencies relied upon by the appellant are not borne out by the record and do not constitute material contradictions capable of undermining the complainant's credibility. Her testimony was recorded as follows:

> Q. You came the last time with Sindi, and I was offloading firewood.

A. Yes, I found accused with Siyabonga and Simphiwe. I went back the third time. It was after the rape."

[22] Further, the courts have repeatedly stressed that assessment of the credibility of witnesses is primarily a matter for the trial court, which has the advantage of observing the demeanour of witnesses as they testify. Put differently, the court of appeal will not lightly interfere with findings of fact made by a trial court, which had the advantage of seeing and hearing the witnesses. Interference is justified only where there is material misdirection or where the findings are plainly wrong. See *S* v *Ncube* 1987 (2) ZLR 246 (S) and *S* v *Banana* 2000 (1) ZLR 607 (S).

[23] Given the above, we found no misdirection in the court a quo's finding that the complainant was a credible witness. The trial court properly evaluated her evidence in its totality and was alive to the alleged inconsistencies raised by the appellant. As already said, those inconsistencies were misdiagnosed. They were neither material nor sufficient to detract from the overall reliability of the complainant's account. In the circumstances, there is no basis upon which this Court may interfere with the court a quo's credibility findings.

Whether the court *a quo* misdirected itself in rejecting the appellant's alibi and defence of family animosity.

[24] The appellant's defense rested on two pillars: first, he said he was elsewhere at the time of the alleged offence, and second, he argued that the charge was motivated by family animosity. The trial court dismissed both defences. The question is whether such dismissal amounted to a misdirection.

[25] As earlier mentioned, an *alibi*, once raised, shifts no burden onto the accused; the obligation remains on the State to disprove it beyond a reasonable doubt. This principle was clearly articulated in *S* v *Mutandi* 1996 (1) ZLR 367 (H), where the High Court held that "*the onus is on the State to disprove an alibi, not on the accused to prove it."* In the present matter, the appellant contended that he did not commit the offence as he was in the bush collecting firewood with the two defence witnesses. He further said that when he met the complainant at the complainant's homestead, the complainant was with other people. At the hearing, the Counsel for the appellant, Mr *Ncube*, conceded

that on three separate occasions, the appellant left his witnesses in the bush and proceeded to his homestead for various reasons. He further conceded that the appellant met with the complainant at the appellant's homestead, though they were in the company of other people. At the end, Mr *Ncube* conceded that in light of the said circumstances, the defence of *alibi* could not be successfully pleaded, as at some point, the appellant was at the crime scene. We therefore need not say more. An *alibi* defence cannot be available to an accused who admits his presence at the crime scene. Properly understood, it is a defence that speaks to the impossibility of an accused committing the crime in question. In essence therefore, there was no *alibi* to talk about in this case. In reality, the appellant's defence was that he could not have raped the complainant in the presence of her and his colleagues. The trial magistrate was therefore correct in rejecting that defence as false.

[26] In respect of family animosity, the trial magistrate further rejected the suggestion that the complainant had been coached to fabricate the allegations against the appellant. The conclusion by the court *a quo* is a result of a fair and balanced assessment of the evidence, which this Court cannot lightly interfere with. The appellant failed to show any such family animosity between his and the complainant's families, which could have led to such grave allegations. Besides his merely saying so, he did not refer the trial court to anything tangible towards that direction. Where family differences are alleged to have been the basis of the fabrication of a crime, the accused who seeks to rely on that must clearly state what the dispute is about and ask witnesses to comment on the allegations. In light of the above, the court *a quo* cannot in any way be faulted for rejecting the appellant's contention of family animosity.

Whether the prosecution's case proved the crime of rape

[27] In Zimbabwean criminal law, the prosecution has a duty to establish the accused's guilt beyond a reasonable doubt. In other words, the accused bears no duty to prove his/her innocence. Any reasonable doubt, based on the evidence, must be resolved in favour of the accused. The threshold does not require proof beyond all possible doubt, but it must exclude any reasonable hypothesis consistent with innocence. That proposition is supported by the timeless authority of *R* v *Difford* 1937 AD 370, where

the Court held that if an accused's version is reasonably possibly true, they are entitled to an acquittal, even if the court does not believe it. The proposition was quoted with approval in *S* v *Chidunga* SC21-02 as follows:

> "No onus rests on the accused to convince the court of the truth of any explanation he gives. If he gives an explanation, even if the explanation is improbable, the court is not entitled to convict unless it is satisfied, not only that the explanation is improbable, but that beyond any reasonable doubt it is false. If there is any reasonable possibility of his explanation being true, then he is entitled to his acquittal."

[28] Similarly, in *S* v *Van der Meyden* 1999 (1) SACR 447 (W), the Court emphasised that the proper approach is to consider the totality of the evidence and determine whether the prosecution has proved guilt beyond a reasonable doubt, while the accused need only show that their version is reasonably possible true. Another important formulation appears in *S* v *Chabalala* 2003 (1) SACR 134 (SCA). *The Court stressed that courts must weigh all the evidence holistically, not in isolation, when* deciding whether the standard has been met. The above principles have been adopted by the Zimbabwean Courts, and in *Gombedza* v *The State* HB129-18, the Court held that:

> "Under our law, the burden of proof lies on the state to prove its case beyond a reasonable doubt. See *S* v *Makanyanga* 1996(2) ZLR 231; *R* v *Difford* 1937 AD 372 at 373."

[29] In the present matter, the appellant's version was completely discredited. His defences were demonstrably false as discussed above. He sought to portray that he was never with the complainant at the material time. But that flew in the face of the available evidence. As already said, there was no question whether or not the complainant had sexual intercourse. The only questions were with who and whether that intercourse had been with her consent. The appellant did not allege consensual intercourse. So, once it was proved that he had sex with the complainant, it left him with virtually no defence. The appellant's further defence was that he was not alone at home when the complainant visited. However, it became common cause during trial that on three occasions he left his colleagues, who were fetching firewood, and returned to his homestead alone. The appellant further sought to attribute the charge to alleged animosity between the families but no evidence whatsoever was adduced in support of

that allegation or to establish the existence of any strained relations between the families.

[30] On the other side, the complalaint gave a clear and coherent account of how the appellant raped her. According to her evidence, she had gone to the appellant's homestead to have a haircut. Upon her arrival, the appellant was alone and led her into the house. Once inside, the appellant closed the door and removed her clothes. He then laid her on the bed. The complainant testified that while the appellant was removing his own clothes, she attempted to leave by moving towards the door. Before she could open it, however, the appellant restrained her, returned her to the bed, lay her on her back, mounted her and inserted his penis into her vagina. After the act, the appellant opened the door, and she left. In the circumstances, we find no fault with the court *a quo*'s conclusion that the appellant's defence amounted to a bare denial which did not raise a reasonable possibility that his version was true.

[31] There can therefore be no argument at all that the prosecution clearly managed to prove its case beyond reasonable doubt that the appellant raped the complainant.

[32] For the above reasons, we considered that the appeal had no merit whatsoever. We consequently ordered that the **appeal be dismissed in its entirety**.

NDLOVU J……

MUTEVEDZI J……. I agree

Moyo & Nyoni Legal Practitioners, Legal Practitioners for the Appellant.

National Prosecuting Authority, Legal practitioners for the Respondent